



CHAPTER 34.

An Act to make provision with respect to the rent of houses or parts thereof let at a rent which includes payment for the use of furniture or for services.

[26th March 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where, as respects a district consisting of the whole or part of the area of a local authority, the Minister of Health (hereinafter referred to as "the Minister") is satisfied on representation by, or after consultation with, the local authority that it is expedient that the provisions of this Act should have effect in that district, he may, by order, direct that this Act shall have effect in that district as from such day as may be specified in the order, and this Act shall thereupon come into force in that district.

Application of Act by order of Minister of Health, and appointment of tribunal.

(2) For each district in which this Act is in force there shall be a tribunal constituted in accordance with the Schedule to this Act, and the provisions of that Schedule shall apply to each tribunal :

Provided that, if the Minister so directs, the same tribunal may act for more than one such district.

2.—(1) Where a contract has, whether before or after the passing of this Act, been entered into whereby one person (hereinafter referred to as the "lessor") grants to another person (hereinafter referred to as the "lessee") the right to occupy as a residence a house or part of a house situated in a district in

Reference to tribunal of contracts for furnished letting.

which this Act is in force in consideration of a rent which includes payment for the use of furniture or for services, whether or not, in the case of such a contract with regard to part of a house, the lessee is entitled, in addition to exclusive occupation thereof, to the use in common with any other person of other rooms or accommodation in the house, it shall be lawful for either party to the contract or for the local authority to refer the contract to the tribunal for the district, and where any such contract (hereinafter referred to as "a contract to which this Act applies") is so referred to the tribunal, they may by a notice in writing served on the lessor require him to give to them, within such period (which shall not be less than seven days from the date of the service of the notice) as may be specified in the notice, such information as they may reasonably require regarding such of the prescribed particulars relating to the contract as are specified in the notice.

(2) Where any contract to which this Act applies is referred to a tribunal, then, unless at any time before the tribunal have entered upon consideration of the reference it is withdrawn by the person or authority by whom it was made, the tribunal shall consider it and, after making such inquiry as they think fit, and giving to each party (and, if the house is one the general management whereof is vested in and exercisable by a housing authority, to that authority) an opportunity of being heard, or, in his option, of submitting representations in writing, shall approve the rent payable under the contract or reduce it to such sum as they may, in all the circumstances, think reasonable, or may, if they think fit in all the circumstances, dismiss the reference, and shall notify the parties and the local authority of their decision in each case.

(3) Where the rent payable for any premises has been entered in the register in accordance with the provisions hereinafter contained, it shall be lawful for the lessor or the lessee or the local authority to refer the case to the tribunal for reconsideration of the rent so entered on the ground of change of circumstances, and the provisions of subsection (2) of this section shall apply on any such reference in like manner as they apply on a reference under subsection (1) of this section subject to the modification that the tribunal shall have power to increase the rent payable.

(4) Where on any reference of a contract, the rent whereunder includes payment for services, the tribunal are of opinion that it would be proper that the rent payable for the premises should include an amount in respect of increase since the third day of September, nineteen hundred and thirty-nine, in the cost of providing such services, and are also of opinion that in all the circumstances a rent higher than the rent payable under the contract might properly be chargeable for the premises in order to include an amount in respect of such increase, they may

approve a rent higher by not more than such amount as they think reasonable in that respect.

(5) An approval, reduction or increase under this section may be limited to rent payable in respect of a particular period.

(6) Notwithstanding anything in the foregoing provisions of this section, a tribunal shall not be required to entertain a reference made otherwise than by the local authority if they are satisfied, having regard to the length of time elapsing since a previous reference made by the same party or to other circumstances, that the reference is frivolous or vexatious.

3.—(1) The local authority shall prepare and keep up to date a register for the purposes of this Act, and shall make the register available for inspection in such place or places and in such manner as the Minister may direct. Register of rents.

(2) The register shall be so prepared and kept up to date as to contain, with regard to any contract under which a rent is payable that has been approved, reduced or increased under the last foregoing section (being a contract relating to premises situated in the area of the local authority), entries of—

- (a) the prescribed particulars with regard to the contract ;
- (b) a specification of the premises to which the contract relates ; and
- (c) the rent as approved, reduced or increased by the tribunal, and, in a case in which the approval, reduction or increase is limited to rent payable in respect of a particular period, a specification of that period.

(3) It shall be the duty of the tribunal, when they notify, under subsection (2) of the last foregoing section, the local authority of their decision in a case, to furnish to the local authority such particulars as are requisite for enabling them to discharge their functions under the foregoing provisions of this section.

4.—(1) Where the rent payable for any premises is entered in the register under the provisions of this Act, it shall not be lawful to require or receive— Rents in excess of registered rents and premiums illegal.

- (a) on account of rent for those premises in respect of any period subsequent to the date of such entry, (or, in a case in which a particular period is specified, in respect of that period) payment of any sum in excess of the rent so entered ; or
- (b) as a condition of the grant, renewal or continuance of a contract to which this Act applies relating to such premises, payment of any fine, premium or other like sum, or any consideration, in addition to the rent.

(2) Where any payment or consideration has been made or received in contravention of the foregoing subsection, the amount or value thereof shall be recoverable by the person by whom it was made or given.

Provision as to notice to quit served after reference to tribunal.

5. If, after a contract to which this Act applies has been referred to a tribunal by the lessee or by the local authority (either originally or for reconsideration), a notice to quit the premises to which the contract relates is served by the lessor on the lessee at any time before the decision of the tribunal is given or within three months thereafter, the notice shall not take effect before the expiration of the said three months :

Provided that—

- (a) the tribunal may, if they think fit, direct that a shorter period shall be substituted for the said three months in the application of this section to the contract that is the subject of the reference ; and
- (b) if the reference is withdrawn, the period during which the notice is not to take effect shall end on the expiration of seven days from the withdrawal of the reference.

Provisions as to local authorities.

6.—(1) For the purposes of this Act, the local authority shall be—

- (a) elsewhere than in the administrative county of London, the council of the borough, urban district or rural district ;
- (b) in the administrative county of London other than the City of London, the council of the metropolitan borough ;
- (c) in the City of London, the common council.

(2) The powers of the local authority under this Act may, if the local authority so resolve, be exercised by one of their officers appointed by them for the purpose.

(3) The local authority shall have power to publish information regarding the provisions of this Act.

(4) Any expenses incurred under this Act by the common council of the City of London shall be defrayed out of the general rate.

Ss. 9 and 10 of 10 & 11 Geo. 5. c. 17 not to apply to registered dwelling houses.

7. Sections nine and ten of the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920 (which relate respectively to limitation on rent of houses let furnished and to penalty for excessive charges for furnished lettings), shall not apply as regards the rent charged for any house or part of a house entered in the register under the provisions of this Act in respect of any period subsequent to such registration, but save as aforesaid nothing in this Act shall affect any provisions of the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939.

8. The Minister may make regulations—

Regulations.

- (a) with regard to the tenure of office of chairmen and other members of tribunals ;
- (b) with regard to proceedings before tribunals under this Act ;
- (c) for prescribing anything which is required by this Act to be prescribed ; and
- (d) generally for carrying into effect the provisions of this Act.

9.—(1) A person who requires or receives any payment or any consideration in contravention of section four of this Act shall be guilty of an offence and be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment, and, without prejudice to any other method of recovery, the court by which he is found guilty may order the amount paid or the value of the consideration given to be repaid to the person by whom the payment was made or the consideration given.

(2) If the lessor under a contract to which this Act applies fails without reasonable cause, within the time limited in that behalf, to comply with the provisions of any notice served under subsection (1) of section two of this Act, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.

10. The local authority shall have power to institute proceedings for an offence under this Act, and no such proceedings shall be instituted otherwise than by them.

11.—(1) A copy of an entry in the register certified under the hand of an officer duly authorised in that behalf by the local authority shall be receivable in evidence of that entry in all courts and in any proceedings.

(2) Any person requiring such a certified copy as aforesaid shall be entitled to obtain it on payment of the prescribed fee.

12.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say :—

“ housing authority ” means a council which is a local authority for the purposes of Part V of the Housing Act, 1936 ;

26 Geo. 5 &
1 Edw. 8. c. 51.

“ local authority ” has the meaning assigned to that expression by section six of this Act ;

“register” means the register kept by the local authority in pursuance of section three of this Act ;

“services” includes attendance, the provision of heating or lighting, the supply of hot water and any other privilege or facility connected with the occupancy of a house or part of a house, not being a privilege or facility requisite for the purposes of access, cold water supply or sanitary accommodation ;

“tribunal” means a tribunal appointed in pursuance of section one of this Act.

(2) Where separate sums are payable by the lessee of any premises to the lessor for any two or more of the following, namely :—

(a) occupation of the premises ;

(b) use of furniture ; and

(c) services ;

the expression “rent” shall, in relation to those premises, mean the aggregate of those sums, and where such sums are payable under separate contracts, those contracts shall be deemed to be one contract.

(3) Nothing in this Act shall apply to a house or part of a house let at a rent which includes payment in respect of board :

Provided that a house or part of a house shall not be deemed to be let at such a rent unless the value of such board to the lessee forms a substantial proportion of the whole rent.

(4) Nothing in this Act shall apply to accommodation registered for the purposes of Regulation sixty-eight CB of the Defence (General) Regulations, 1939, which is let in accordance with the terms and conditions so registered.

Short title,
extent and
duration.

13.—(1) This Act may be cited as the *Furnished Houses (Rent Control) Act, 1946.*

(2) This Act shall not extend to Scotland or to Northern Ireland.

(3) This Act shall continue in force until the thirty-first day of December, nineteen hundred and forty-seven.

SCHEDULE.

PROVISIONS REGARDING CONSTITUTION OF TRIBUNALS.

Section I

1. A tribunal shall consist of a chairman and two other members.
2. The chairman and the other members of a tribunal shall be appointed by the Minister. During the absence or incapacity of any member a person appointed by the Minister shall act in his place.
3. The members and acting members of a tribunal shall receive such remuneration and such travelling and other allowances as the Minister may, with the consent of the Treasury, determine.
4. A tribunal may appoint a clerk and, with the approval of the Minister as to numbers, such other officers and servants as they think fit, and there shall be paid to the clerk and other officers and servants such salaries and allowances as the Minister, with the consent of the Treasury, may determine.
5. The remuneration and allowances of members and acting members of a tribunal, the salaries and allowances of the clerk and other officers and servants appointed as aforesaid, and such other expenses of a tribunal as the Treasury may determine, shall be defrayed out of moneys provided by Parliament.